

MASTER SERVICES AGREEMENT

This Master Services Agreement (the "Agreement") is entered into as of January 15, 2026 (the "Effective Date") by and between Meridian Software Labs, Inc., a Delaware corporation ("Provider"), and Northgate Financial Group, Inc., a New York corporation ("Client").

Provider will perform professional software development and consulting services for Client pursuant to one or more statements of work executed under this Agreement (each, a "Statement of Work" or "SOW").

1. Services

1.1 Provider shall perform the services described in each SOW (the "Services") in a professional and workmanlike manner, using personnel with suitable skill and experience.

1.2 Each SOW shall describe the Services, deliverables, schedule, fees, and any acceptance criteria. In the event of a conflict between a SOW and this Agreement, the SOW governs for that engagement only if it expressly references the conflicting section.

1.3 Changes to a SOW require a written change order signed by both parties describing the impact on scope, schedule, and fees.

2. Term

This Agreement begins on the Effective Date and continues for an initial term of three (3) years. Thereafter it automatically renews for successive one (1) year periods unless either party gives written notice of non-renewal at least ninety (90) days before the end of the then-current term.

3. Fees and Payment

3.1 Client shall pay the fees set forth in each SOW. Unless a SOW states otherwise, Services are billed monthly in arrears on a time-and-materials basis.

3.2 Invoices are due and payable within thirty (30) days of the invoice date (net 30). Late payments accrue interest at one and one-half percent (1.5%) per month or the maximum rate permitted by law, whichever is less.

3.3 Client is responsible for all applicable sales, use, and value-added taxes, excluding taxes on Provider's income. Pre-approved, reasonable travel expenses are reimbursable at cost.

4. Termination

4.1 Termination for Convenience. Client may terminate this Agreement or any SOW for convenience upon sixty (60) days' prior written notice to Provider, and shall pay for all Services performed and non-cancellable commitments incurred through the effective date of termination.

4.2 Termination for Cause. Either party may terminate this Agreement if the other party materially breaches it and fails to cure the breach within thirty (30) days after receiving written notice describing the breach.

4.3 Effect of Termination. Sections 5 (Confidentiality), 6 (Intellectual Property), 8 (Indemnification), 9 (Limitation of Liability), and 12 (Governing Law) survive termination.

5. Confidentiality

5.1 Each party agrees to protect the other party's non-public business, technical, and financial information ("Confidential Information") with reasonable care, to use it only to perform under this Agreement, and not to disclose it except to personnel bound by equivalent obligations.

5.2 These confidentiality obligations survive for three (3) years after termination or expiration of this Agreement,

except for trade secrets, which remain protected for as long as they qualify as trade secrets.

6. Intellectual Property

6.1 Upon full payment, all deliverables expressly identified in a SOW are assigned to Client and become Client's property ("Work Product").

6.2 Provider retains ownership of its pre-existing materials, tools, and generic know-how ("Provider Materials"). Provider grants Client a perpetual, non-exclusive, royalty-free license to use Provider Materials solely as incorporated into the Work Product.

7. Warranties

7.1 Provider warrants that the Services will materially conform to the applicable SOW for ninety (90) days following delivery. Client's exclusive remedy for breach of this warranty is re-performance of the non-conforming Services or, if re-performance fails, a refund of fees paid for those Services.

7.2 EXCEPT AS EXPRESSLY STATED IN THIS SECTION, PROVIDER DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

8. Indemnification

8.1 Provider shall defend and indemnify Client against third-party claims alleging that the Work Product, as delivered, infringes a U.S. patent, copyright, or trade secret, and shall pay resulting damages finally awarded, provided Client gives prompt notice and sole control of the defense to Provider.

8.2 Provider's indemnity does not apply to claims arising from Client's modifications, combination with materials not supplied by Provider, or use after Provider provides a non-infringing alternative.

8.3 Each party shall indemnify the other against third-party claims for bodily injury, death, or damage to tangible property to the extent caused by its negligence or willful misconduct.

9. Limitation of Liability

9.1 EXCEPT FOR INDEMNIFICATION OBLIGATIONS UNDER SECTION 8, BREACH OF SECTION 5 (CONFIDENTIALITY), OR A PARTY'S GROSS NEGLIGENCE OR WILLFUL MISCONDUCT, EACH PARTY'S TOTAL AGGREGATE LIABILITY UNDER THIS AGREEMENT SHALL NOT EXCEED THE FEES PAID OR PAYABLE BY CLIENT TO PROVIDER IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM.

9.2 NEITHER PARTY IS LIABLE FOR LOST PROFITS, LOSS OF DATA, OR INDIRECT, INCIDENTAL, SPECIAL, PUNITIVE, OR CONSEQUENTIAL DAMAGES, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

10. Insurance

During the term, Provider shall maintain commercial general liability insurance of at least \$1,000,000 per occurrence and \$2,000,000 in the aggregate, professional liability (errors and omissions) insurance of at least \$2,000,000, and statutory workers' compensation coverage, and shall provide certificates of insurance upon Client's reasonable request.

11. Force Majeure

Neither party is liable for delay or failure to perform (other than payment obligations) caused by events beyond its reasonable control, including natural disasters, war, terrorism, labor disputes, governmental action, or failures of third-party utilities or networks, provided the affected party gives prompt notice and uses commercially reasonable

efforts to mitigate.

12. Governing Law and Disputes

This Agreement is governed by the laws of the State of New York, excluding its conflict of laws rules. The parties consent to the exclusive jurisdiction of the state and federal courts located in New York County, New York. Before filing suit, the parties shall attempt in good faith to resolve any dispute through senior-executive negotiation for at least thirty (30) days.

13. General

Provider is an independent contractor; nothing in this Agreement creates a partnership, joint venture, or employment relationship. Notices must be in writing and delivered to the addresses on the signature page. Neither party may assign this Agreement without the other's prior written consent, not to be unreasonably withheld. This Agreement, together with all SOWs, is the entire agreement of the parties.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.